

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3891

By: Cantrell

AS INTRODUCED

An Act relating to counties and county officers;
amending 19 O.S. 2021, Section 180.62, as amended by
Section 3, Chapter 394, O.S.L. 2024 (19 O.S. Supp.
2025, Section 180.62), which relates to basic
salaries for county officers; directing excise board
members of the county to set salaries for elected
county officials; stipulating that basic salary for
sheriff and county commissioners shall be no less
than other elected county officials; directing for a
basic salary for elected county officials not less
than Sixty Thousand Dollars; directing the Oklahoma
Department of Transportation to utilize certain funds
for any portion of basic salary which county is
unable to pay; prohibiting excise board members of
any county from reducing the salary of an elected
official who assumed office prior to passage of this
act; repealing 19 O.S. 2021, Section 180.63, which
relates to the formula for elected county official
salaries; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 19 O.S. 2021, Section 180.62, as
amended by Section 3, Chapter 394, O.S.L. 2024 (19 O.S. Supp. 2025,
Section 180.62), is amended to read as follows:

Section 180.62. A. ~~The basic salaries of county officers upon
which all salaries and future increases or decreases thereof shall~~

1 ~~not be less than Nineteen Thousand Dollars (\$19,000.00) per annum~~
2 ~~nor shall they exceed Forty nine Thousand Five Hundred Dollars~~
3 ~~(\$49,500.00) per annum, provided the basic salary for the sheriff,~~
4 ~~which shall be no less than other salaries for county officers~~
5 ~~controlled by this section, shall not be less than Forty four~~
6 ~~Thousand Dollars (\$44,000.00) per annum nor shall it exceed Seventy~~
7 ~~four Thousand Five Hundred Dollars (\$74,500.00) per annum.~~

8 ~~B. The board of county commissioners, or if the county has~~
9 ~~elected to come under the County Budget Act, the budget board~~
10 ~~members of the county,~~

11 Excise board members of the county shall set the salaries for
12 all elected county officials within the limits allowed by law,
13 provided the basic salary for the sheriff and county commissioners
14 shall be no less than other salaries for other elected county
15 officials. The basic salary for elected county officials shall not
16 be less than Sixty Thousand Dollars (\$60,000.00).

17 ~~C. B.~~ The annual salaries fixed by this act shall be paid
18 either monthly or twice a month, by order of the board of county
19 commissioners, for each month or fraction thereof the incumbent
20 lawfully occupies and holds title to such office.

21 C. If the excise board of a county determines the county budget
22 is insufficient to meet the minimum basic salary for all elected
23 officials in the county as provided for in this section, then the
24 Oklahoma Department of Transportation shall utilize County

1 Improvements for Roads and Bridges (CIRB) funds to provide
2 reimbursement to the county for any portion of the basic salary
3 which the county is unable to pay.

4 D. Excise board members of the county shall not reduce the
5 salary of an elected county official who assumed office prior to the
6 passage of this section.

7 SECTION 2. REPEALER 19 O.S. 2021, Section 180.63, is
8 hereby repealed.

9 SECTION 3. This act shall become effective November 1, 2026.

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11 60-2-14416 MJ 12/23/25

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